

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JACK SPILBERG,

Petitioner

VS.

BROOKE SCHUMACHER,

Respondent

) Case Number: FDI-20-793956

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jack Spilberg (Father) and Respondent Brook Schumacher (Mother). They share one minor child: Bodie (DOB: 11/13/13).
- 2) On 12/30/21, the Court entered a Judgment of Dissolution, Article 11 of which reserves jurisdiction over child support and includes orders regarding add-on expenses. The Judgment also terminates jurisdiction to award spousal support to either party.
- 3) On for hearing is Father's Request for Order filed on 7/7/26, seeking modification of child support based on imputation of Mother's earning capacity because Mother has employment history in professional roles and is actively job searching. Father states Mother has refused to provide an updated Income and Expense Declaration.
- 4) On 7/7/26, Father filed an Income and Expense Declaration. Father is 48 years old and has been employed as a Senior Account Executive since 10/20/2025. Father works about 40 per week and is paid \$11,923.08 per month. Father claims Mother can earn full-time California minimum wage. Father states he has \$12,235.66 in cash savings and \$5,763 in stocks, bonds, and other

1 asserts he could easily sell. Father states he has a 50% timeshare of Bodie. Father did not attach
2 paystubs to his Income and Expense Declaration.

3 5) On 7/31/26, Father filed a Proof of Personal Service indicating Mother was personally served
4 with the Request for Order and supportive pleadings on 7/11/26.

5 6) On 8/6/26, the court continued Father's 7/7/2026 Request for Order to 9/24/26 to allow Mother
6 additional time to file a response and updated Income and Expense Declaration.

7 7) Mother has not filed a Responsive Declaration or Income and Expense Declaration to date.

8 8) Father filed an additional Request for Order on 7/31/26 seeking clarification of custody orders.

9 The parties have been ordered to participate in mediation on 10/06/26, and a hearing has been set
10 for 11/3/26. Neither party is seeking to modify their 50% timeshare.

11 **B. Findings and Order**

12 1) The Court finds that Mother has the ability and opportunity to earn full-time minimum wage
13 income, and that imputation of income to Mother is in Bodie's best interest. The Court therefore
14 finds good cause to impute full-time minimum wage income to Mother of \$2,929 (based on the
15 \$16.90 per hour minimum wage rate in Moraga where Mother resides).

16 2) Effective 7/7/2026 (the date Father filed his Request for Order), Father shall pay Mother \$1,048
17 per month in guideline child support in accordance with the XSpouse calculation attached hereto
18 and incorporated.

19 3) The Court finds Father owes Mother child support arrears in the amount of \$2,805 for the period
20 7/7/2026 – 9/30/2026. Commencing 10/1/2026, Father shall pay Mother an additional \$467.50
21 per month by the 1st of each month for a period of 6 months to satisfy these arrears.

22 4) Based on the foregoing, Father shall pay Mother $\$1,048 + \$467.50 = \$1,515.50$ per month by the
23 1st of each month between 10/1/2026 – 3/31/2027, and \$1,048 per month commencing 4/1/2027.

24 5) Neither party requested a modification of the child support add-on provisions set forth in the
25 parties' Judgment and therefore those provisions shall remain in full force and effect.

26 6) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	1	0	2026				
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	11402	11402
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	11923	2929	8721		Payment cost/benefit	-1048	-1048
Self-employed income	0	0	Mother		Net spendable income	7673	7673
Other taxable income	0	0	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	67%	67%
Other nontaxable income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	3202	3202
401(k) employee contrib	0	0	S.Clara SS		Dep. exemption value	0	0
Adjustments to income	0	0	Total		# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	8463	8463
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	1048	1048
Other medical expense	0	0			Net spendable income	3729	3729
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	33%	33%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS		Total taxes	249	249
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	2361	2361
Hardship deduction	0 *	0 *	Saving				
Other GDL deductions	0	0	Releases				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	0	0	0	Father	1048	Father	1048	Father
	50 - 50	0	0	0	Father	1048	Father	1048	Father